

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, SEPTEMBER 22, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**NAESHA MCREE WELLS v. CITY OF FAIRFIELD et al.
Case No. CU25-05032**

Plaintiff's Motions to Compel I.M.'s Further Responses to Form Interrogatories, Set One and Special Interrogatories, Set One

TENTATIVE RULING

Plaintiff NAESHA MCREE WELLS moves to compel Defendant I.M. ENTERPRISING ("I.M.") to further respond to one form interrogatory from her first set and three special interrogatories from her second set.

Meet and Confer Efforts. The court first considers the adequacy of the moving party's efforts to meet and confer to work discovery issues out before resorting to a motion to compel further responses. Code of Civil Procedure section 2016.040 requires a declaration "showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion" to compel. Plaintiff's counsel's attached declaration in support of the motion states that counsel served the discovery requests at issue on November 14, 2025. (Declaration of Arash Nematollahi in Support of Motion to Compel Further Responses to Special Interrogatories ("Nematollahi Dec.") at ¶ 3.) I.M. responded on January 22, 2026. (*Id.* at ¶ 4.) On February 2, 2026 Plaintiff sent a meet and confer letter. (*Id.* at ¶ 6, Exhibit 3.) I.M. never responded. (*Id.* at ¶ 7.) The instant motions were filed on March 9, 2026.

The trial court has discretion in determining whether adequate meet and confer efforts preceded the filing of the motion. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424 [factors include complexity of discovery issues, history of counsel in prior disputes, judge's gut feeling; sending one brief letter 13 days prior to deadline to file motion was not sufficient attempt].) The court finds Plaintiff made sufficient efforts to meet and confer in good faith.

Analysis. I.M. concedes the discoverability of the insurance information Plaintiff requests in its opposition brief, stating it will provide supplemental responses. (Opposition at 2:6-8.)

Code of Civil Procedure section 2030.300, subdivision (d) requires sanctions against a party that unsuccessfully makes or opposes a motion to compel further responses to interrogatories, unless the court finds that the losing party acted with substantial justification or that other circumstances weigh against the imposition of sanctions. The court finds sanctions of \$250 per motion, for a total of \$500, appropriate in the circumstances.

Conclusion. Plaintiff's motion is granted. I.M. is ordered to serve supplemental responses to all interrogatories at issue before October 15, 2026. Sanctions are imposed in the total amount of \$500, due and payable by October 15, 2026.

BRODERICK v. STAVRINIDES
Case No. cu25-07061

Motion by Respondent to Vacate Paragraph (4)(b)(1) Portion of the May 26, 2026 Order on Request to Continue Hearing

TENTATIVE RULING

This court was assigned the Civil Harassment Restraining Order (CHRO) case filed by Sonoma County Judge PATRICK M. BRODERICK ("Petitioner") against ELIAS STAVRINIDES ("Respondent"). Its jurisdiction is therefore limited to resolving this case, and no others.

Although titled as a motion to vacate the May 26, 2026 court order extending the Temporary Restraining Order ("TRO") until the January 20, 2027 status review conference, Respondent's motion included arguments about the vexatious litigant order and other activity in an earlier-filed Sonoma County civil case, as well as the anti-SLAPP motion earlier denied in this CHRO case.

This court has no jurisdiction over the earlier-filed Sonoma County case, or the federal court case filed by Respondent against Petitioner and others.

Even as to the anti-SLAPP motion heard earlier by this court in this CHRO case, Respondent's filing of a notice of appeal of that ruling precludes this court from changing that ruling until the pending appeal is resolved.

C.C.P. §916(a) explains:

Except as provided in Sections 917.1 to 917.10, inclusive, and in Section 116.810, the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order.

This serves to protect the appellate court's jurisdiction over the pending appeal, and to avoid trial court rulings that would render the appeal moot.

Once an appeal is perfected, an automatic stay goes into effect under Code of Civil Procedure section 916 preventing all further trial court proceedings that may undermine the effectiveness of the appeal, including "enforcement of the judgment or order" under review. (Code Civ. Proc., § 916, subd. (a).) The automatic stay specifically suspends the trial court's power to "enforce, vacate or modify" the appealed judgment or order while the appeal is pending. (Varian Medical Systems, Inc. v. Delfino (2005) 35 Cal.4th 180, 189 [25 Cal. Rptr. 3d 298, 106 P.3d 958].) The purpose of this limit on the trial court's power—which is fundamental to appellate procedure—"is to protect the appellate court's jurisdiction by preserving the status quo until the appeal is decided. The [automatic stay] prevents the trial court from rendering an appeal futile by altering the appealed judgment or order by conducting other proceedings that may affect it." (Ibid.) Royals v. Lu (2022) 81 Cal.App.5th 328, 343.

Thus, the court has no jurisdiction to rule on other court proceedings, such as the earlier Sonoma County civil action, nor even the anti-SLAPP motion currently on appeal in our case.

To the extent Respondent's motion challenged matters involving our CHRO case other than the anti-SLAPP motion ruling currently on appeal, it is denied as without merit.

One of Respondent's challenges specific to this CHRO case is that Petitioner should have been forced to pay a filing fee for filing the CHRO petition.

C.C.P. §527.6(y)(2)(A) precludes any filing fee for a CHRO petition, as it states:

There is no filing fee for a petition that alleges that a person has inflicted or threatened violence against the petitioner, stalked the petitioner, or acted or spoken in any other manner that has placed the petitioner in reasonable fear of violence, and that seeks a protective or restraining order restraining stalking,

future violence, or threats of violence, in an action brought pursuant to this section.

The petition alleges stalking and/or actions that placed Petitioner in reasonable fear of violence.

Another challenge Respondent raised specific to this CHRO case is to the latest extension of the TRO issued back in August 2025, from May 2026 to January 20, 2027, pending the court's monitoring of the status of Respondent's appeal of this court's January 27, 2026 denial of his anti-SLAPP motion.

This extension was the latest in a series of extensions of the TRO made necessary by Respondent's filing of the anti-SLAPP motion and this subsequent appeal of this court's denial of it.

The court finds inherent authority to extend the TRO in C.C.P. §187, which provides:

When jurisdiction is, by the Constitution or this Code, or by any other statute, conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given; and in the exercise of this jurisdiction, if the course of proceeding be not specifically pointed out by this Code or the statute, any suitable process or mode of proceeding may be adopted which may appear most conformable to the spirit of this Code.

To find otherwise in this situation would encourage and reward respondents in CHRO cases to file unmeritorious anti-SLAPP motions and appeals of the trial court denials of those motions, all the while unrestrained by any continuing court order from further harassing and/or threatening CHRO petitioners, as appeals are known to take approximately 18-24 months on average to be decided.

Thus, Respondent's motion is denied in its entirety.

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